

23SMCV05356 23SMCV05356

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-06

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CP%2C07%2F06%2F2026

Source SHA-256: 282538ab5220525adf3d0e696c5f79cddf838af5091fe7d52b8e3e698f5cbe92

Case Number: 23SMCV05356 Hearing Date: July 6, 2026 Dept: P

Tentative

Ruling

Oakhurst

Income Fund II v. Don Caverhill, Case No. 23SMCV05356

Plaintiff's

Motion for Attorneys' Fees

Hearing

Date: July 6, 2026

Background

On

November 14, 2023, Plaintiff Oakhurst Income Fund II, LP ("Oakhurst") sued Defendant Don Caverhill for breach of three continuing guaranty agreements dated August 26, 2022. (Complaint, ¶ BC-1.) Oakhurst alleged that Caverhill owed it \$1,087,459.48 under the guaranty agreements. (Id. at ¶ BC-4.)

On

December 14, 2023, Oakhurst applied for a writ of attachment, right to attach order, and temporary protective order on Caverhill's real property located at 2500 Briarcrest Rd., Beverly Hills, CA 90210. On February 2, 2024, the Court granted Oakhurst's application.

On

February 7, 2024, Oakhurst entered default against Caverhill.

On May 22,
2024, the Court granted Oakhurst default judgment against Caverhill, awarding Oakhurst \$639,035.74 in damages, \$11,266.60 in pre-judgment interest, \$9,180.40 in attorneys' fees, and \$2,523.50 in costs.

On May 22,
2024, the Court found that this case was not related to LASC Case No. 24SMCV01151, Oakhurst Income Fund II, LP v. 2500 Briarcliff Road, LLC.

Since July
2024, there have been two hearings on applications for orders for appearance and examination.

On May 21,
2026, Oakhurst filed this Motion for Attorneys' Fees. Oakhurst moves for an order under Code Civ. Proc §§ 685.040, 685.080, and 1033.5(a)(10)(A) awarding it attorneys' fees and expenses incurred in enforcing the default judgment, in the amount of \$55,766.50. (Motion for Attorneys' Fees, p. 2.) This motion is unopposed.

Motion
for Attorneys' Fees

"The
judgment creditor is entitled to the reasonable and necessary costs of enforcing a judgment. Attorney's fees incurred in enforcing a judgment are not included in costs collectible under this title unless otherwise provided by law. Attorney's fees incurred in enforcing a judgment are included as costs collectible under this title if the underlying judgment includes an award of attorney's fees to the judgment creditor pursuant to subparagraph (A) of paragraph (10) of subdivision (a) of Section 1033.5." (Code Civ. Proc. § 685.040.) Code Civ. Proc. § 1033.5(a)(10)(A) allows a prevailing party to recover attorneys' fees authorized by contract.

A motion
brought under § 685.040 must be made before the judgment is satisfied in full, but not later than two years after the costs have been incurred. (Code Civ. Proc. § 685.080.) Such a motion must be served on the judgment debtor and be supported by an affidavit of a person who has knowledge of the facts. (Code

Civ. Proc. § 685.080.)

“A trial court assessing attorney fees

begins with a touchstone or lodestar figure, based on the ‘careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.” (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) “The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work.” (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

Analysis

The

underlying judgment in this action was entered pursuant to three guarantee contracts, each of which contained an attorneys’ fees provision stating: “Guarantor agrees to pay Lender, on demand, reasonable attorneys’ fees and all other costs and expenses which may be incurred by Lender in the collection or attempted collection from Borrower of any Credit and/or in the interpretation, enforcement or attempted enforcement by Lender of this Guaranty. . .” (Complaint, Exhibit A, p. 010, ¶ 20; Complaint, Exhibit A, p. 022, ¶ 20; Complaint, Exhibit A, p. 034, ¶ 20.) Oakhurst’s default judgment in this case included an award of \$9,180.40 in attorneys’ fees pursuant to this provision. The default judgment is therefore a qualifying underlying judgment including an award of attorneys’ fees “pursuant to subparagraph (A) of paragraph (10) of subdivision (a) of Section 1033.5,” under Code Civ. Proc. § 685.040.

This

motion is timely because the judgment has not been satisfied and because it seeks attorneys’ fees for work to enforce the judgment in the past two years, between May 22, 2024 and May 21, 2026. (See Landau Decl., ¶ 7.)

a.

Lodestar

Analysis

Oakhurst

requests fees for its' attorney in this matter, Lewis R. Landau. Mr. Landau specializes in bankruptcy law and has been in practice for more than thirty years. (Landau Decl., ¶ 2.) Mr. Landau's rates for 2024, 2025, and 2026 are \$745.00 per hour, \$795.00 per hour, and \$845.00 per hour. (Landau Decl., ¶ 8.) These rates are reasonable for an attorney of Mr. Landau's experience and expertise in the Los Angeles area.

Oakhurst

moves for fees for 68.10 hours of Mr. Landau's work. (Landau Decl., ¶ 9.) Oakhurst's billing records submitted in support of this motion, however, are primarily composed of billing entries for work on Oakhurst Income Fund II, LP v. 2500 Briarcliff Road, LLC, LASC Case No. 24SMCV01151, an unrelated case in which Mr. Landau also represents Oakhurst. Some billing entries reflect work on both cases. For example, Mr. Landau billed 2 hours on December 11, 2025 for "Prepar[ing] revised ORAP application for attempted service on Caverhill at Lancaster address and update B2500 discovery requests and subpoenas." (Landau Decl., Exhibit A, p. 13.) This Court will not award fees or costs for work done on a different case before a different judge. The Court will also not award fees or costs for Mr. Landau's time where it is not clear which case he was working on.

Based on

the Court's review of Mr. Landau's billing records, Mr. Landau billed 3.5 hours on this action in 2024, 12.7 hours in 2025, and 5.3 hours in 2026. These hours are recoverable under Code Civ. Proc. § 635.040. (3.5 hours x \$745.00 per hour) + (12.7 hours x 795.00 per hour) + (5.3 hours x 845 per hour) = \$17,182.50.

Oakhurst also

requests costs of \$1,317.00 (Landau Decl., ¶ 10.) Following a review of Oakhurst's costs, \$911.00 of Oakhurst's requested costs were incurred in this case. The Court grants Oakhurst those costs.

Conclusion

Oakhurst's

Motion for Attorneys' Fees is Granted in the amount of \$17,182.50, plus \$911.00 in costs.